

24STCV11166 24STCV11166

County: los-angeles

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Case Number: 24STCV11166 Hearing Date: July 29, 2026 Dept: 407

Tentative Ruling

Judge Brock T. Hammond, Department 407

HEARING DATE: July

29, 2026 TRIAL

DATE: None

CASE: Rashel Yadkar v. Kia America, Inc., et al.

CASE NO.: 24STCV11166

MOTION

FOR ATTORNEY'S FEES, COSTS, AND EXPENSES

MOVING PARTY: Plaintiff

Rashel Yadkar

RESPONDING PARTY: Defendant Kia

America, Inc.

I. BACKGROUND

In this lemon law action, Plaintiff Rashel Yadkar ("Plaintiff") alleges (among other things) that Defendant Kia America, Inc. ("Defendant") failed to repair his new 2022 Kia Niro vehicle after the vehicle started manifesting defects and nonconformities during the warranty period.

On May 3, 2024, Plaintiff filed this action against Defendant and Does 1 through 100, inclusive, asserting causes of action for: (1) breach of implied warranty; (2) breach of express warranty; and (3) violation of the Song Beverly Consumer Warranty Act ("SBA").

On December 23, 2025, Plaintiff filed Notice of Settlement of Entire Case.

On May 20, 2026, Plaintiff filed the instant motion for attorney's fees, costs, and expenses.

On July 16, 2026, Defendant filed its opposition.

On July 23, 2026, Plaintiff filed his reply.

No evidentiary objections or requests for judicial notice were filed in connection with the instant motion.

II. LEGAL STANDARD

Under the SBA, "a buyer who 'prevails in [their] action' may recover 'costs and expenses, including attorney's fees based on actual time expended, determined by the court to have been reasonably incurred by the buyer in connection with the commencement and prosecution' of his action under the Act. ([Civ. Code] § 1794, subd. (d).)" (Duff v. Jaguar Land Rover North America, LLC (2022) 74 Cal.App.5th 491, 501.)

"Determining a reasonable attorney fee award in Song-Beverly Act cases "ordinarily begins with the 'lodestar,' [which is] the number of hours reasonably expended multiplied by the reasonable hourly rate.'" [Citation.]" (Tidrick v. FCA US LLC (2025) 112 Cal.App.5th 1147, 1157 (Tidrick).) "The burden is on the successful party to prove the appropriate market rate to be used in calculating the lodestar. [Citation.] ... [T]he moving party may satisfy its burden through its own affidavits, without additional evidence. [Citation.]" (MBNA America Bank, N.A. v. Gorman (2006) 147 Cal.App.4th Supp. 1, 13 (MBNA).)

"The [lodestar]

figure may then be augmented or diminished [through the use of a positive or negative multiplier, respectively] ... taking various relevant factors into account, including (1) the novelty and difficulty of the questions involved and the skill displayed in presenting them; (2) the extent to which the nature of the litigation precluded other employment by the attorneys; and (3) the contingent nature of the fee award, based on the uncertainty of prevailing on the merits and of establishing eligibility for the award.' [Citation.]" (Doppes v. Bentley Motors, Inc. (2009) 174 Cal.App.4th 967, 998; Robertson v. Fleetwood Travel Trailers of California, Inc. (2006) 144 Cal.App.4th 785, 822 (Robertson) ["the use of a multiplier is authorized in awarding attorney's fees under the Song-Beverly Act ..."].) When determining the appropriate multiplier, the trial court should not consider the same factors (e.g., contingent nature of the attorney fees) it relied on to determine the lodestar amount. (Ketchum v. Moses (2001) 24 Cal.4th 1122, 1138 (Ketchum).) "[T]he party seeking a fee enhancement bears the burden of proof." (Ibid.)

III. DISCUSSION

Plaintiff moves for an attorney

fee award of \$31,313.31, consisting of a lodestar of \$25,470, costs of \$749.31, and a 0.2 multiplier of \$5,094. (Notice of Motion, p. 1:21-27.)

A.

Lodestar

To determine the appropriate lodestar, the SBA

""requires the trial court to [1] make an initial determination of the actual time expended; and then [2] ... ascertain

whether under all the circumstances of the case the amount of actual time expended, and the monetary charge being made for the time expended are reasonable." (Tidrick, supra, 112 Cal.App.5th at p. 1158.)

""These circumstances may include, but are not limited to, factors such as the complexity of the case and procedural demands, the skill exhibited, and the results achieved."" (Ibid.) ""If the time expended or the monetary charge being made for the time expended are not reasonable under all the circumstances, then the court must take this into account and award attorney fees in a lesser amount."" (Ibid.)

Here, Plaintiff was

represented by The Law Office of Jacob K. Kashani, APC (the "Firm").

Plaintiff's counsel,

Attorney Jacob K. Kashani ("Kashani"), testifies that the Firm spent 35.6 hours at the following billing rates: (1) Kashani spent 33.1 hours at \$650 per hour (equals \$21,515); (2) someone named "DC" spent 0.5 hours at \$600 per hour (equals \$300); (3) "RO" spent 1.5 hours at \$400 per hour (equals \$600); (4) "TT" spent 0.5 hours at \$650 per hour (equals \$325). (Motion, p. 9:22-24; Kashani Decl., Exh. B – a copy of the Firm's billing records.)

Contrary to Defendant's

arguments, the Court finds Kashani's hours and billing rates reasonable. "In challenging attorney fees as excessive because too many hours of work are claimed, it is the burden of the challenging party to point to the specific items challenged, with a sufficient argument and citations to the evidence. General arguments that fees claimed are excessive, duplicative, or unrelated do not suffice." (Premier Medical Management Systems, Inc. v. California Ins. Guarantee Assn. (2008) 163 Cal.App.4th 550, 564.) Here, as Plaintiff argues, Defendant only makes general arguments that the hours are excessive instead of pointing out specific items. That is insufficient. The Court also finds Kashani's billing rate of \$650 per hour reasonable in light of the attorney's experience. (See Kashani Decl., ¶ 11 [testifying that he is the principal proprietor of the Firm and has exclusively handled SBA cases for a decade]; Rey v. Madera Unified School Dist. (2012) 203 Cal.App.4th 1223, 1240 ["The determination of what constitutes reasonable attorney fees is committed to the discretion of the trial court. [Citation.] The experienced trial judge is the best judge of the value of professional services rendered in his or her court"].)

However, Kashani has not explained who DC, RO, and TT are (e.g., attorneys or paralegals) or their experience so as to justify their billing rates. Therefore, the Court deducts the \$1,225 that was charged by those three from the requested lodestar of \$25,470.

For those reasons, the

Court approves a lodestar of \$24,245.

B.

Multiplier

The "lodestar

figure may...be adjusted [according to a multiplier enhancement] based on

consideration of factors specific to the case, in order to fix the fee at the fair market value for the legal services provided.” (PLCM Group v. Drexler (2000) 22 Cal.4th 1084, 1095.) Relevant multiplier factors include “(1) the novelty and difficulty of the questions involved, (2) the skill displayed in presenting them, (3) the extent to which the nature of the litigation precluded other employment by the attorneys, [and] (4) the contingent nature of the fee award.” (Ketchum, supra, 24 Cal.4th at p. 1132.)

The Court finds this was a straightforward case that does not justify a multiplier. Therefore, the request for a multiplier is denied.

C.

Costs

Plaintiff has submitted a Memorandum of Costs seeking to recover costs of \$749.31, which consists of filing and motion fees of \$703.18 and service of process fees of \$41.20. (Motion, Kashani Decl., ¶ 16; Exh. E – a copy of the Memorandum of Costs.) Defendant has not challenged those costs.

The Court approves and grants the requested cost amount.

IV. CONCLUSION

The motion for attorney’s fees and costs is GRANTED IN PART and DENIED IN PART as follows. The request for attorney’s fees and costs is GRANTED. The Court awards Plaintiff attorney’s fees of \$24,245 and costs of \$749.31, for a total award of \$24,994.31. The request for a multiplier is DENIED.

Plaintiff
to give notice.

Dated: July 29, 2026

Hon. Brock T. Hammond

Judge of the Superior Court